

HOUSE No. 5216

The Commonwealth of Massachusetts

HOUSE OF REPRESENTATIVES, March 12, 2026.

The committee on Environment and Natural Resources, to whom were referred the petition (accompanied by bill, House, No. 903) of Natalie M. Blais and Mindy Domb for legislation to establish old growth forest reserves in the Commonwealth; the petition (accompanied by bill, House, No. 952) of Carmine Lawrence Gentile and others relative to watershed forest protection; the petition (accompanied by bill, House, No. 953) of Carmine Lawrence Gentile and others relative to forest protection; and the petition (accompanied by bill, House, No. 1048) of Danillo A. Sena and others relative to increased protection of wildlife management areas, reports recommending that the accompanying bill (House, No. 5216) ought to pass.

For the committee,

CHRISTINE P. BARBER.

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In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act relative to forest protection.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 SECTION 1. (a) Notwithstanding any general or special law to the contrary, the
2 department of conservation and recreation shall conduct a formal review of its coordinated
3 management guidelines for sustainable forestry practices created pursuant to section 2F of
4 chapter 21 of the general laws, as appearing in the 2022 Official Edition, and the operations of
5 the division of forest and parks, as described in chapter 132 of the general laws, as so appearing.

6 (b) Said review shall occur every five years and i) assess the efficacy of the department's
7 existing forest management practices to protect and preserve the commonwealth's natural
8 resources; (ii) review the department's landscape designation process and make
9 recommendations for operational improvements, increased transparency, and improved
10 opportunities for public participation; (iii) make recommendations for any statutory changes
11 needed to improve the department's management of public and private forest land; (iv) assess
12 opportunities to increase acreage of forest reserves, with particular consideration for old growth
13 forests; (v) assess the feasibility, advantages and disadvantages of making permanent
14 designations for existing nature preserves, with particular consideration for old growth forests;

(vi) make recommendations for transparency and accountability improvements for the division, including, but not limited to, proposed statutory changes to codify advisory committees and administrative bodies overseeing forest management; (vii) identify opportunities for nature-based solutions to maximize the utilization of forest land to meet the commonwealth's emissions reduction goals; (viii) assess the department's preparedness to manage and mitigate climate change impacts on public and private forest land; and (ix) assess the commonwealth's capacity for carbon sequestration on public forest land as a method to mitigate climate change.

(c) The forests and parks of the commonwealth now under the care, custody and control of the commissioner and subject to the formal review shall not be leased, sold, or exchanged, or be taken by any corporation, public or private, nor shall the timber thereon be sold, removed or destroyed, except as a response to a known forest management emergency, and no commercial activities except those essential to the quiet enjoyment of the facilities by the people shall be permitted on such lands until the department has submitted its findings to the clerks of the house of representatives and the senate, the joint committee on ways and means and the joint committee on environment and natural resources pursuant to Section 2 of this act.

SECTION 2. The department shall solicit public input on its forest management practices as part of the review process. Not later than March 1, 2027, the department shall (i) hold no fewer than 4 public hearings in geographically-diverse regions to receive public testimony on forest management in the commonwealth and shall provide for remote participation; and (ii) solicit and accept written and electronic testimony submissions from the public. Not later than May 1, 2027, the department shall release a draft report of its findings and solicit public comment for at least 30 days.

37 SECTION 3. The department shall submit its findings, along with any updated
38 guidelines, draft regulations, recommendations for statutory changes, and written comments and
39 summaries of oral testimony submitted during public comment periods to the clerks of the house
40 of representatives and the senate, the joint committee on ways and means and the joint
41 committee on environment and natural resources not later than June 30, 2027.